Rahul Khurana vs State Nct Of Delhi And Anr on 18 December, 2025

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
% Date of Decision: December 18th, 2025
+ BAIL APPLN. 3416/2025, CRL.M.A. 26687/2025,
CRL.M.A. 26688/2025 & CRL.M.A. 31665/2025
RAHUL KHURANA .....Applicant
Through: Mr. Mohit Mathur, Sr.
Adv. with Mr. Alok
Kumar Pandey & Mr.
Shekhar Sharma, Advs.

versus

STATE NCT OF DELHI AND ANR .....Respondents
Through: Mr. Sunil Kumar Gautam,
APP for the State
SI Mahavir Singh, PS-
DIV/ Outer Distt.
Mr. Archit Kaushik, Adv.
for R2
CORAM:
HON'BLE MR. JUSTICE AMIT MAHAJAN

AMIT MAHAJAN, J. (Oral)

1. The present application is filed seeking pre-arrest bail in FIR No. 170/2025 dated 08.04.2025 registered at Police Station Paschim Vihar West for offences under Sections 420/406/467/468/471/120B/34 of the Indian Penal Code, 1860 ('IPC').

2. Briefly stated, the FIR was registered on a complaint given by one Parminder Singh alleging that he invested a sum of 10,00,000/- with the accused persons including the applicant in the form of bank transfer, crypto currency transfer and cash on an assurance given by the accused persons that the complainant would get a triple return on his investment. It is alleged that the 17:39:39 complainant made the investments in the year 2021 and has not received any amount till date.

3. This Court, by order dated 08.09.2025, while granting interim protection to the applicant on him showing his bona fide and depositing a sum of 10,00,000/- with the Registrar General of this Court, had noted that even though it was claimed that there are multiple victims, the chargesheet had already been filed in regard to the complaint made by the complainant. It was also noted that while the applicant was evading the process of law, co- accused Ravi Shankar who is alleged to have a similar role has already been admitted on bail by this Court by order dated 29.07.2025.

4. On that occasion, this Court had also taken note of the contention of the learned Senior Counsel for the applicant that even though the complainant had alleged to have invested a sum of

10,00,000/-, no proof of such deposit had been furnished.

5. On 19.11.2025, the learned Additional Public Prosecutor for the State submitted that the Investigating Officer would verify the amount allegedly received by the applicant in his bank account. The Status Report handed in Court today mentions the details of investment made by seven persons and the Police has also mentioned the total cheated amount against each victim which indicates that approximately a sum of 14,00,000/- was transferred to the applicant's account.

6. The learned Senior Counsel for the applicant submits that without prejudice to the rights and contentions of the applicant, the applicant is willing to deposit an additional sum of 4,00,000/- with the Registrar General of this Court.

7. It is pointed out that pursuant to the interim protection, the applicant has already joined the investigation. As noted above, the chargesheet has already been filed in the complaint made by the complainant and co-accused Ravi Shankar whose role is similar to that of the present applicant has already been enlarged on bail by order dated 29.07.2025.

8. It is not in doubt that order for grant of bail cannot be passed in a routine manner so as to allow the accused to use the same as a shield. At the same time, it cannot be denied that great amount of humiliation and disgrace is attached with the arrest. In cases where the accused has joined investigation and is not likely to abscond, the custodial interrogation should be avoided. Considering the aforesaid, this Court is of the opinion that the custodial interrogation of the applicant is not required.

9. Before parting, this Court deems it apposite to take note of the fact that in the present case, the complainant has alleged to have invested a sum of 10,00,000/- with the accused persons with the hopes of tripling his investment and getting an astronomical 20% returns per month. While it is not the intent of this Court to dilute or prejudge the merits of the present case, and this Court is conscious that the offences pertaining to financial fraud strike at the root of public trust, yet this Court deems it apposite to underscore that in today's time where such frauds are commonplace, buyers/investors must be prudent and ought to enter into such schemes with open eyes. While it is not in doubt that the law must deal with such cases with a heavy hand, yet criminal law cannot act as a substitute for commercial wisdom. Such assurances of massive return on investments especially in a short span ought to put the potential buyer/investor on guard.

10. In view of the above, the present application is allowed and the applicant, in the event of arrest, is directed to be released on bail on furnishing a personal bond for a sum of 20,000/- with two sureties of the like amount, subject to the satisfaction of the concerned SHO, on the following conditions:

> a. The applicant is directed to deposit a sum of 4,00,000/- with the Registrar General of this Court within a period of two weeks.

b. The applicant shall join and cooperate with the investigation, if required, as and when directed by the IO;

c. The applicant shall not leave the country without the prior permission of the learned Trial Court; d. The applicant shall not directly or indirectly make any inducement, threat or promise to any person acquainted with the facts of the case or tamper with the evidence of the case, in any manner whatsoever; e. The applicant shall appear before the learned Trial Court as and when directed;

f. The applicant shall provide the address where he would be residing after his release and shall not change the address without informing the concerned IO/SHO;

g. The applicant shall give his mobile number to the concerned IO/SHO and shall keep their mobile phones switched on at all times.

11. In the event of there being any FIR/DD entry / complaint lodged against the applicant, it would be open to the respondent to seek redressal by filing an application seeking cancellation of bail.

12. It is clarified that the observations made in the present order are only for the purpose of considering the present application and should not influence the outcome of the trial and also not be taken as an expression of opinion on the merits of the case.

13. On the receipt of a sum of 4,00,000/- from the applicant, the Registrar General of this Court is directed to release the sum of 14,00,000/- to the concerned Trial Court. The amount deposited shall be subject to further orders by the Trial Court.

14. The bail application is allowed in the aforementioned terms. Pending applications also stand disposed of.

AMIT MAHAJAN, J DECEMBER 18, 2025 "SS"